

		Gov. Code, § 815.2 provides in part that a “public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” Here, Plaintiff alleges only that DOE Bus Driver, as an employee of Defendant OCTA was acting within the course and scope of his employment, when he “recklessly and carelessly operated the [OCTA bus],” “failing to follow the proper procedures and guidelines with regard to safely transporting passengers and following safe driving techniques, causing Plaintiff to sustain injuries including but not limited to his left hand, left shoulder, left elbow, and neck.” Plaintiff fails to state facts to support this claim as he does not allege what actually happened to cause Plaintiff’s injuries. Claims against government entities must be pled with particularity. (See <i>Lopez v. Southern Cal. Rapid Transit Dist.</i> (1985) 40 Cal.3d 780, 795.) <u>3rd cause of action for common carrier liability pursuant to Civ. Code, § 2100, 2101 and 2103</u> Like with the second cause of action, Plaintiff fails to allege facts showing how Defendant violated the identified statutes. In addition, these statutes do not confer liability on Defendant OCTA. As Defendant puts it, there is no recognized cause of action that may be stated based on alleged violation of the Civil Code sections alone. Based on the foregoing, the general demurrer is sustained with leave to amend as to each of the three causes of action in Plaintiff’s First Amended Complaint. Defendant shall give notice.
7.	2025-1517383 Skallerud vs. Petsmart LLC	Defendant Petsmart LLC’s demurrer to the third cause of action for bad faith denial of claim in plaintiff Robert Skallerud’s first amended complaint (“FAC”) is sustained with 15 days leave to amend. [ROA # 59.] <u>Plaintiff’s Complaint</u> This is essentially an action to recover for personal injury suffered by Plaintiff when he slipped and fell at a Petsmart. [FAC, ¶ GN-1.] Plaintiff asserts claims for negligence and premises liability on this basis. [FAC, first and second causes of action.]

Plaintiff also alleges that after this accident the third-party insurance claim handler for Petsmart intentionally delayed and denied the claim in bad faith. [FAC, ¶ IT-1.] Based on this allegation, Plaintiff asserts a claim for bad faith denial of his claim. [FAC, ¶ 10.f. and third cause of action.]

Legal Standard

A demurrer can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. Limited to the “four corners” as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.

On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *People v. Lim* (1941) 18 Cal. 2d 872, 883. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” *Khoury v. Maly’s of California, Inc.* (1993) 14 Cal. App. 4th 612, 616. Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. *Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908. A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. *Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).

Discussion

Third Cause of Action for Intentional Tort/Bad Faith Denial of Claim

Tortious claims for bad faith are actions peculiar to insurance companies and their insureds. A third party (that is, someone not insured under the policy) has no standing to sue for bad faith. *Seretti v. Superior Nat. Ins. Co.* (1999) 71 Cal.App.4th 920, 929 (“

‘Whether for better or worse ... liability for ‘bad faith’ has been strictly tied to the implied-in-law covenant of good faith and fair dealing arising out of an underlying contractual relationship. Where no such relationship exists, no recovery for ‘bad faith’ may be had. [Citation.] [¶] [Thus], an insurer’s duty of good faith and fair dealing is owed solely to its insured and, perhaps, any express beneficiary of the insurance policy.’ (*Austero v. National Cas. Co.* (1976) 62 Cal.App.3d 511, 516–517.)”).

The insurer’s duty of good faith arises out of the policy that requires it to protect the insured’s interest as well as its own – which means that an insurance company is required to investigate *an insured’s* claim in good faith. *Mariscal v. Old Republic Life Ins. Co.* (1996) 42 Cal.App.4th 1617, 1620, 1623 (“Insureds seek protection against calamity and purchase insurance to buy peace of mind and security. . . . The insurer has a duty to protect the insured’s interests as if it were its own, and it may not deny a claim without thoroughly investigating it.” and “When investigating a claim, an insurance company has a duty to diligently search for evidence which supports its insured’s claim. If it seeks to discover only the evidence that defeats the claim it holds its own interest above that of its insured.”)(Citations omitted).

When an insurance company does not investigate in good faith prior to denying a claim, it is subject to an action for bad faith. *See* CACI 2332.

Here, Plaintiff is seeking to assert a bad faith claim against Petsmart based on the actions of its insurance claim handler. Plaintiff disputes the necessity of a contractual relationship in order to assert a claim for bad faith denial of claim. Rather, he contends, he may sue Petsmart for its agent’s “independent, intentional tortious conduct committed during the administration of a claim.” [Opp. (ROA #67) at 4:7-8.]

Plaintiff alleges delays and failures to respond, and finally bad faith denial. [FAC, ¶ IT – 1.] But Plaintiff does not allege any duty owed by Petsmart to Plaintiff to investigate his claim diligently or in good faith.

In his opposition, Plaintiff complains of repeated, false promises that he relied on. [Opp. at 4:12-14.] If Plaintiff was defrauded, he can allege a fraud cause of action. Otherwise, in the absence of allegations of fact showing Petsmart owed Plaintiff a duty of care in the handling of his claim against it, Plaintiff’s claim for bad faith denial of claim fails.

		The general demurrer to the Plaintiff's third cause of action is therefore sustained. Accordingly, the court need not reach the demurrer for uncertainty.
8.	2025-1505314 Davenport vs. Akua Behavioral Health, Inc.	Defendant Akua Behavioral Health, Inc.'s motion to compel plaintiff Molly Davenport to arbitrate her claims in this action is denied. <u>Facts</u> <i>Plaintiff's Complaint</i> For her sexual harassment claim, Plaintiff alleges she was employed by Defendant as a case manager until she was promoted to program manager at an understaffed and disorganized program. Her requests for support were denied and Plaintiff suffered stress and health consequences requiring a medical leave. [First Amended Complaint ("FAC" – ROA #16), ¶¶ 9-17.] Upon Plaintiff's return, Defendant's vice president, Piyush Saluja began a romantic relationship with a new hire, Annalise Poe. As a result of this relationship, Poe was promoted to associate clinical director though she was unqualified. [FAC, ¶ 18.] At least two AKUA employees submitted written complaints to management and/or Human Resources regarding the inappropriate personal relationship between SALUJA and POE and the preferential treatment POE was receiving as a result of sexual favoritism. Within days of submitting their complaints, both employees that complained were terminated under the pretext of a "company-wide layoff." Plaintiff alleges these terminations were retaliatory and intended to suppress further reports or investigations into Saluja's and Poe's conduct. [FAC, ¶ 21.] These retaliatory terminations and Defendant's failure to investigate or correct the misconduct fostered an environment where employees reasonably believed that reporting or opposing the sexual favoritism between Saluja and Poe, which affected multiple employees, would result in punishment for those employees reporting the misconduct. [FAC, ¶ 34.] On 2/4/25, Plaintiff was informed by Saluja of a proposed Performance Improvement Plan (PIP), despite having no history of disciplinary issues. Management later offered to re-label it as a Performance Enhancement Plan (PEP), while also suggesting a demotion. Plaintiff voiced her readiness to meet all objectives but raised concerns about the process and intent of the Performance Enhancement Plan, suggesting that it was intended to punish Plaintiff and move her aside to clear the way for POE's advancement. Despite her cooperation, her name was removed from team spreadsheets and Human Resources issued threats of administrative action for Plaintiff not signing the Performance